

# **CV-26-002823 COLE, KAYLA RENEE vs UHAUL BUSINESS CONSULTANTS INC – Defendant U-Haul Co. of California’s Motion Compel Arbitration and to Stay Proceedings - GRANTED.**

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: A petition to compel arbitration requires the moving party to establish the existence of a valid agreement to arbitrate and that the controversy falls within the agreement's scope. (Code Civ. Proc., § 1281.2.) Here, Plaintiff does not appear to dispute the existence or execution of the arbitration agreement. The principal issue is scope. The arbitration clause is notably broad. It applies to “any dispute, complaint, controversy, or cause of action arising out of or relating to your relationship with U-Haul or any prior, current or future Transaction with U-Haul.” The agreement further provides that “[a]ll claims, including assigned claims, brought under any legal theory, whether at law or in equity, are covered by this Agreement and shall include, but not be limited to, all statutory and tort claims, that may be asserted.” The agreement defines “Transaction” to mean, among other things, “the commencement, completion, or fulfillment of: A) a request or reservation to rent, use or purchase Equipment or to receive services; B) the use or review of the content of any U-Haul website; or C) any entry onto any U-Haul or U-Haul agent's property.” (Trudell Decl., Exh. A, U-Haul Arbitration Agreement, § 2(a), (e).) Here, it appears that that Plaintiff alleges that she entered the U-Haul property and fell on the property. Plaintiff suggests this is independent of the arbitration agreement, but the arbitration agreement itself appears to cover it. That such a claim might be made even without a rental contract is of no moment. Plaintiff cites *Izzi v. Mesquite Country Club* (1986) 186 Cal.App.3d 1309 for the proposition that the roots of the dispute must be related to the contract. To the extent this is accurate, the roots of the dispute – over the maintenance of the UHaul property – are related to contract. The following are the tentative rulings for cases calendared before Judge Stacy P. Speiller in Department 22:

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